

23STCV05277 23STCV05277

County: los-angeles

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Case Number: 23STCV05277 Hearing Date: September 24, 2026 Dept: O

Tentative Ruling

(1)

Respondents ISABEL HSIEH; KAREN LEE; and TIFFANY LAW's
MOTION FOR ATTORNEY FEES is DENIED.

(2)

MOTION AND MOTION FOR LEAVE TO FILE CROSS-COMPLAINT
is GRANTED.

Background

This action pertains
to the HOA's bylaws. Petitioner/Plaintiff CYNTHIA ESCUTIA-COBIAN in her
petition states, inter alia, that two persons elected to the Board of
Directors, Isabel Hsieh and Karen Lee, are not resident Unit Owners" as neither
live in any condominium of in the Fall Creek community but rent the units to
third parties, in violation of Article IV of the bylaws.

On June 21, 2023, Plaintiff filed an
amended petition against FALL CREEK HOMEOWNERS ASSOCIATION, a California
corporation (the "HOA"); ISABEL HSIEH, an individual; KAREN LEE, an individual;
TIFFANY LAW for:

1.

WRIT OF MANDATE, DECLARATORY RELIEF AND INJUNCTION

2.

DECLARATORY AND INJUNCTIVE RELIEF FOR FAILURE TO PERFORM DUTIES

On July 13,

2023, the court issued, in pertinent part, the following minute regarding Plaintiff's ex-parte application 'For Temporary Restraining Order Pending Hearing On Preliminary Injunction And Order To Advance The Hearing On The Preliminary Injunction Presently Set For Hearing On October 9, 2023': "The moving party has failed to make an affirmative factual showing of irreparable harm, immediate danger, or any statutory basis for granting relief Ex Parte pursuant to California Rules of Court 3.1202(c)."

On July 21,

2023, Respondents filed a verified answer to the first amended petition.

On July 26,

2023, Respondents filed a cross-complaint against Plaintiff for Violation/Breach of the Governing Documents; Injunctive Relief; and Damages. (Based upon a review of the cross-complaint, it is predicated upon the allegation that the HOA has determined it is necessary to re-pipe all of the buildings within the development, but Plaintiff has refused to allow the HOA access to Plaintiff's unit for the re-pipe project.)

On July 31,

2023, Respondents filed their first amended verified answer.

On September

21, 2023, Plaintiff filed a substitution of attorney (replacing William B. Hanley with Feldsott, Lee & Nichter).

On November

1, 2023 (after supplemental briefing), the court denied Plaintiff's motion for a preliminary injunction. Specifically, Plaintiff sought an injunction for an order that Respondents (a) comply with Article IV that only resident unit owners serve as members of the board of directors and (b) remove Hsieh and Lee as neither are 'resident unit owners' as required by the bylaws, but Defendants evidenced showed that respondents are resident unit owners. As for Plaintiff's contention that the 2017 amendment is invalid, the one-year statute of limitations passed pursuant to Cal. Civ. Code, § 5145(a) and Cal. Civ. Code, § 5100(a) - amendment of the governing documents.

On September

26, 2024, the court signed the judgment dismissing Plaintiff's first amended petition, allowing Defendants/Respondents to recover attorney fees, and enjoining Plaintiff from interfering with various projects/construction.

On

December 3, 2024, the court granted the Motion to Set Aside/Vacate Judgment filed by Cynthia Escutia-Cobian on 10/29/2024.

On

November 17, 2025, Defendants/respondents filed an MSJ/MSA.

On

December 24, 2025, the court denied the MSJ/MSA for multiple defects.

On January 27, 2026, Petitioner filed a

'request for dismissal' of the petition without prejudice as to 'individuals ISABEL HSIEH, KAREN LEE, & TIFFANY LAW.'

On

March 23, 2026, the instant motion for attorney fees was filed.

On

June 17, 2026, the court continued the hearing on the motion for attorney fees for supplemental briefing. The court did so as motion heavily relied upon three cases to support Respondents' position that they are the prevailing party: Parrott v. Mooring (2004) 112 Cal.App.4th 873, Salehi v. Surfside III Condominium Owners' Association (2011) 200 Cal.App.4th 1146, and Coltrain v. Shewalter (1998) 66 Cal.App.4th 94. However, as noted in the motion itself, both Parrott and Salehi involved dismissals against the HOA whereas the 1/27/26 dismissal was not as to the HOA but against the individual board members (at which the 2nd COA was directed at). In response to this, the reply advance numerous cases that were not asserted in the motion. With that, the court allowed for supplemental briefing. The parties have submitted their respective briefs.

On

August 20, 2026, Petitioner filed the instant motion for leave.

Discussion

Individual

Respondents move this Court for an order determining that the Respondents are the prevailing party in this case under Civil Code section 5975(c), and awarding attorney fees in the amount of \$84,488.25. In turn, the subsection of the statute provides that “In an action to enforce the governing documents, the prevailing party shall be awarded reasonable attorney’s fees and costs.” The issue then is whether Respondents, the individual board members, are the prevailing party under the statute. For reasons to be discussed below, they are not.

The parties present numerous authority and arguments in support of their respective positions, but there is an argument raised in Petitioner’s supplemental opposition that obviates the need to reach all the arguments presented: Under the Davis-Stirling Act, the trial court makes a “pragmatic” inquiry into “which party had prevailed on a practical level.” (Opp. p. 6, citing Heather Farms Homeowners Assn. v. Robinson (1994) 21 Cal.App.4th 1568, 1574 [“Winick, Donald, and Elster all share a common theme. In each case, the court declined to adopt a rigid interpretation of the term “prevailing party” and, instead, analyzed which party had prevailed on a practical level. Donald and Elster further clarify that the trial court must determine who is the prevailing party, and that the court’s ruling should be affirmed on appeal absent an abuse of discretion.”];[1] Almanor Lakeside Villas Owners Assn. v. Carson (2016) 246 Cal.App.4th 761, 773 [“The Davis–Stirling Act does not define “prevailing party” or provide a rubric for that determination. In the absence of statutory guidance, California courts have analyzed analogous fee provisions and concluded that the test for prevailing party is a pragmatic one, namely whether a party prevailed on a practical level by achieving its main litigation objectives.”.)

Here,
the court determines that the individual directors are not the prevailing party because on a ‘practical level,’ they did not achieve the main litigation objection. For one, as heavily argued in opposition, “the movants’ camp has achieved no

substantive
objective at all — its dispositive motion was denied — and both sides’ main litigation objectives remain in full contest against the Association.” (Opp. p. 6.) To this, the supplemental reply provides only one reference to “litigation objection” which is that the Respondents’ “litigation objective was to get the [First Amended

Petition] dismissed and Petitioner dismissed it.” (Supp. Reply p. 8:1-3; see also Supp. Reply p. 8 [“Thus, the Dismissed Respondents are the prevailing parties, as none of the relief sought in the complaint was awarded to the Petitioner.”.) But when the litigation is still ongoing such that Petitioner may obtain damages/the requested relief, that reason is not accurate. What is more, the statute provides that a “prevailing party” is entitled to attorney fees, not a “dismissed” party. Subscribing to Respondents’ position would mean that every party who is dismissed from an action by the petitioner/plaintiff is entitled to attorney fees and there is no case law or statute supporting that interpretation.

Based

thereon, the motion for attorney fees is denied.

Discussion

Re: Cross Complaint[2]

Petitioner

seeks to file a cross-complaint based upon events that happened after her October 5, 2023 answer to the Association’s Cross-Complaint: the vacatur of the \$56,733.75 default judgment (December 3, 2024), the Board’s executive-session decision to keep that voided sum on Ms. Escutia-Cobian’s account; the January 15, 2025 disciplinary “hearing” of which she was never given the notice; the resulting \$181,391.53 “special reimbursement assessment”; the City’s November 12, 2024 stop-work order; the April 2025 sewage backup; and the May 24, 2026 burst of the common hot-water main that flooded her home and nearly electrocuted her husband.

As

the standard is that leave to file a compulsory cross-complaint “shall” be granted absent substantial evidence of bad faith, then the court grants the motion. (Code Civ. Proc., § 426.50.) In fact, courts at best have only a “modicum of discretion” in denying leave to file a compulsory cross-complaint. (*Gherman v. Colburn* (1977) 72 Cal.App.3d 544, 550; *Sidney, v. Superior Court* (1988) 198 Cal.App.3d 710, 718; c.f., *Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App3d at pp. 98-99 [rejecting view the court may exercise discretion in the denial of a motion to file a compulsory cross-complaint; to the extent discretion is allowed to deny the motion, there must be substantial evidence to support the trial court’s decision.]

In

opposition, Respondents largely focus on the merits of the proposed amended petition, but motion for leave to file a pleading does not adjudicate the sufficiency of that pleading; the preferable practice is to permit

the

pleading and allow the opposing party to test its legal sufficiency by demurrer or motion to strike. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) Thus, the court will not reach the SOL, litigation privilege, and other matters raised.

To

the extent that Respondents object that the Motion seeks “to name a new plaintiff (i.e., cross-complainant)” (Opp. 3:24–26), Petitioner may do that: a cross-complaint may join “any person” against whom, or with whom, a related cause of action lies. (Code Civ. Proc., §§ 428.10, subd. (b), 428.20.)

To the extent that Respondents object on the

grounds that the motion fails to comply with CRC Rule 3.1324, it is unclear how that would apply. Rule 3.1324 follows the premise into error. By its terms the rule governs “[a] motion to amend a pleading before trial.” (Cal. Rules of Court, rule 3.1324(a).) Its requirements that the proposed pleading be “serially numbered to differentiate it from previous pleadings or amendments,” and that the moving papers identify “by page, paragraph, and line number” the allegations deleted from and added to “the previous pleading” presuppose an existing pleading being altered. Here, as also argued in reply, there is no previous cross-complaint by Petitioner to differentiate; nothing is deleted from anything; and every allegation of the proposed pleading is before the court in full, lodged as Exhibit 1.

All

in all, there is no showing of prejudice (no trial date) or undue delay.

Based

on the foregoing, this motion is granted.

Conclusion

Based

on the foregoing, the motion for attorney fees is denied and the motion to file a compulsory CC is granted.

[1] The case discussed various cases that discussed various statutes e.g., 1032(a)(4), 1021.5. Civil Code section 55, CCP section 527.6.

[2]
The opposition's caption also provides that Counsel Moreno's declaration is attached, but it appears that has been inadvertently omitted.